



FEDERAL MARITIME COMMISSION

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Bureau of Trade Analysis

January 2, 2024

Rebecca Fenneman
Jeffrey/Fenneman Law + Strategy, PLLC
700 12th Street, NW Suite 700
Washington, DC 20005
Tel. +1 202-904-2301
Via email: rfenneman@jeffreyyfenneman.com

RE: Special Permission Request for Ocean Network Express Pte. Ltd. Org. No. 027043

Dear Ms. Fenneman,

This is to advise that the application for special permission submitted on December 29, 2023, on behalf of Ocean Network Express Pte. Ltd. has been granted as follows:

Special permission authority is hereby granted to allow **Ocean Network Express Pte. Ltd., FMC Org. No. 027043**, to publish in Tariff Code ONEY-202 effective January 2, 2024, the following Rule 219:

Red Sea Diversion Charge (RSD) with the following text:

The Red Sea Diversion Charge (RSD) will apply in order to offset increased operational costs as a result of having to divert vessels away from the Red Sea/Suez Canal in consideration of recent attacks on commercial vessels in the Red Sea area.

This Red Sea Diversion Charge (RSD) is in effect for North America (USA & Canada) East & USA Gulf Coast to the Middle East and/or Indian Sub-Continent** and applies for all cargo and container types as follows:*

Quantum:

USD 200 per 20' container

USD 400 per 40' & 40' High Cube container

USD 400 per 45' container

USD 600 per 40' & 40' High Cube refrigerated container

** For the purpose of this rule, Middle East is defined as:*

United Arab Emirates, Oman, Bahrain, Kuwait, Qatar, Saudi Arabia (including Dammam and Al Jubail), Jordan & Sokhna, Egypt

*** For the purpose of this rule, Indian Sub-Continent is defined as:*

India, Bangladesh, Pakistan

The Commission's regulations at 46 C.F.R. § 520.14(a) and Section 8(d) of the Shipping Act of 1984, as amended (46 U.S.C. 405010(e)) authorize the Commission, in its discretion and for good cause shown, to approve applications for special permission to depart from the statutory notice period requirements. The Bureau of Trade Analysis has determined that good cause has been shown. The publication shall bear special case number SP-011969.

Sincerely,

Kristen
Monaco
Kristen Monaco, Director

Digitally signed by
Kristen Monaco
Date: 2024.01.02
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